

## COUNTY OF VANCE

Absent: None.

Rev. Julia Alliger, Cokesbury United Methodist Church, gave the invocation.

Public comments were heard first. Krista Duncan, although not a Vance County resident, spoke in support of the proposed fire restructure. She stated that each volunteer fire department receives \$100,000 per year from the county while the Vance County Fire Department (VCFD) receives \$1.1 million from the general fund, plus \$100,000 from the fire fund. She asked why the VCFD receives so much more than the volunteer departments. She also stated that most of the volunteer fire department chiefs support the proposal as well.

Deborah Brown expressed her support for the fire restructure proposal. She stated that she emailed each of the commissioners a letter concerning the proposal and asked that it be included in the record. See below.

[illegible]

February 1, 2019

It is my understanding that the Fire Restructuring Plan proposed by the Fire Commission (FC) and Public Safety Committee (PSC) seeks to provide better response time and fire/rescue protection services for all Vance County citizens. I also understand that, from the outset, the FC and PSC were

The FC and PSC developed a plan which would provide for more equitable coverage throughout the county using a combination of paid firefighters and dedicated fire and rescue volunteers. The county manager, after reviewing the restructuring plan, not only indicated that the plan could work, but also that it could be accomplished without the need to increase taxes.

The service provided by our Volunteer Fire Departments (VFDs) is invaluable and greatly appreciated. It is my understanding that trained volunteers are ready, willing and able to work with the VCFD in order to provide better service for all citizens. Accordingly, all citizens would benefit if the VCFD became a team player and shared personnel and resources in order to provide all citizens of Vance County with the best possible fire/rescue protection 24/7.

- Both the VCFD and the Vance Rescue Squad are located on adjoining lots. Join the two together to form Vance County Fire and Rescue (VCFR). That department could continue to serve the Golden Belt Fire district on a full-time 24/7 basis.
- Use the Satterwhite Point Road Fire Station (currently manned by Vance County paid firefighters) to house rescue boats, equipment, etc. This would make water rescue vehicles more readily accessible for water rescues. It could also eliminate the need to staff that station with full-time paid personnel which I understand cost taxpayers \$113,880.00 annually. Other minor details, such as equipment to remain there, etc. would need to be addressed.
- Allow the Fire Marshall to coordinate the assignment of county paid staff and trained volunteers to work VCFR, Hicksboro VFD and Bearpond VFD. Using paid staff and volunteers at the Hicksboro and Bearpond VFDs will provide those citizens living in the northern and southern parts of the county (outside the Golden Belt District) with full time 24/7 fire protection.
- Allow the Fire Marshall to coordinate with the Chief of each VFD for the purpose of assigning paid, part-time staff for their respective department.
- Use the \$2.6 million-dollar county fire service budget to distribute funding more equitably among all fire departments

Thank you for your time and consideration of the above. I also thank you for your service to our county and for your continued efforts to improve the quality of life for all Vance County citizens.

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As advertised, a public hearing was held to receive public input on a proposed economic development incentive expenditure to be considered for the expansion of Southeastern Specialty Vehicles, located on real estate that is owned by C&N Real Estate Investments. In return for the commitments of investing at least \$136,500 and creating a minimum of 26 full time equivalent

jobs in Vance County, it is proposed that Vance County will facilitate and provide a Building Reuse Grant in the amount of \$130,000 with an additional local match of \$6,500 with the source of funds being appropriated from funds from the NC Department of Commerce and the Vance County General Fund Balance. The expansion of this company in Vance County will stimulate investment in the local economy and promote business, resulting in the creation of a substantial number of jobs at competitive wages, and encourage economic growth and development opportunities which the County has determined will be made possible because of this project.

As there was no one present who wished to speak on this matter, Chairman Archie B. Taylor, Jr. declared the public hearing closed.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, to approve the following resolution in support of Job Creation and Economic Development in Vance County and authorizing approval of contract documents for Southeastern Specialty Vehicles Building Reuse Grant.

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**RESOLUTION**  
**by the**  
**Vance County Board of Commissioners**  
**in support of**  
***Job Creation and Economic Development in Vance County***

**WHEREAS**, the County is vitally interested in the economic welfare of its citizens and the creation and maintenance of sustainable jobs for its citizens; and

**WHEREAS**, the County has determined that the creation of jobs at competitive wages, and encouragement of economic growth and development opportunities within the County are realized by providing local incentives and grants for projects which fulfill these goals; and

**WHEREAS**, Southeastern Specialty Vehicle, Inc. is a company proposing to add additional manufacturing space and increase their local work force, all attributes which fulfill the goals desired by the County; and

**WHEREAS**, the County recognizes that the Project will bring direct and indirect benefits to the County, including job creation, economic diversification and stimulus and training in manufacturing skills, and has offered economic development incentives including the award of a Rural Economic Development, Building Reuse Grant from the North Carolina Department of Commerce in the amount of One Hundred, Thirty Thousand Dollars (\$130,000).

**NOW, THEREFORE BE IT RESOLVED, THAT**

1. The Vance County Board of Commissioners hereby agrees to participate in the above referenced grant, to C&N Real Estate Investments as the property owner and Southeastern Specialty Vehicle, Inc. as the participating business.
2. The Commissioners further agree to provide the local match of five percent (5%) in addition to the grant award amount of 130,000.
3. Funds pursuant to the Grant Award and the local match shall not be made available to the company or its owner for allowable reimbursement of expenses as set forth in the Rural

Economic Development Grant Agreement, Private Owner, 2019-094-3201-2587 before the full performance of all required repayment provisions.

4. The Chairman of the board is hereby authorized to execute all required documents related to and in support of this.

**This, the 4<sup>th</sup> day of February, 2019.**

**Archie B. Taylor, Jr. (signed)**  
**Archie B. Taylor, Jr., Chairman**

Mr. Stuart Hill, Thompson, Price, Scott, Adams & Co, P.A., was next on the agenda and presented the FY 2017-18 Audit Report. He stated that there were no significant audit findings, no difficulties encountered in performing the audit, no uncorrected misstatements, no disagreements with management, and no other auditing findings or issues. The County's total fund balance had increased from \$22.1 million to \$22.5 million. The unassigned fund balance decreased from \$17.4 million to \$17.2 million, which is 34.59% of next year's budget. This is well within the range that is recommended by the Local Government Commission. Tax collections increased from 96.65% to 97.33%. The total property valuation is \$2,773,983,034 and the total levy amount is \$24,851,164.

Chairman Taylor commended the county manager, finance director and staff for doing an outstanding job which resulted in an excellent audit report.

Motion was made by Commissioner Dan Brummitt to receive the FY 2017-18 Audit Report as presented. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Bailey Alston, Lisa Harrison, and Dr. Deron Coy appeared before the board with an update on the Stepping Up Initiative. Mr. Alston stated that he is a recovered addict, and is glad to be able to help with this initiative. He advised that the Stepping Up Initiative is a national initiative to reduce the number of people with mental illnesses in jails, reduce the length of stay for these individuals, increase connections to community treatment resources upon release from jail, and reduce recidivism rates. He stated that more than two thirds of jail detainees have a substance use disorder, and 17% of the jail population has a serious mental illness. Of these, 75% have co-occurring mental illness and substance use disorder. This is why the Stepping Up Initiative is so important.

Dr. Deron Coy, Psychologist, stated that he is glad to be a part of this initiative. He stated that detainees have access to a weekly mental health clinic by video conference. Video

conferences are also available every day of the year. Initial sessions take mental health history, provide diagnosis, determine current status, and provide treatment recommendations. Follow-ups assess stability over time, provide psychoeducation and treatment, and eventual goal to link to community mental health providers.

Ms. Harrison thanked the board for its support and stated that, as with most projects, continued collaboration, funding, staffing, and the investment of time and talent are always needed.

After brief discussion, the board thanked Ms. Harrison, Mr. Alston and Dr. Coy for the update and for all they do with this initiative.

Amanda Welsh, Chris Welsh, and Brian Boyd provided an update to the board about the Henderson-Oxford Airport. Ms. Welsh stated that after the sudden death of Mike Kellogg last year, her company, FlyHNZ, is now the service provider to the airport. The airport has converted to LED lighting and the ramp has been repaved. FlyHNZ now provides hangar leases, which was previously just a hand shake agreement. She stated that the airport hosts a military history show every October, provides fly-in events, and is proposing a chapter of a national aviation organization, EAA. In April, the airport will be hosting the EAA Young Eagles, which will provide free plane rides for children ages 8 to 18. FlyHNZ also handles log books and records for the airport. She stated that she is excited to see the airport grow and become a greater part of the community.

As far as economic development, Commissioner Dan Brummitt stated that grant funding is available through the Regional Transportation Advisory Committee for airport improvements. He asked Ms. Welsh if they were working on a plan to determine what improvements might be needed in order to make our airport more attractive to these grants. Mr. Brian Boyd stated that the Airport Authority is working within state guidelines to make sure the airport qualifies for these funds.

The board thanked Mr. and Mrs. Welsh and Mr. Brian Boyd for this informative update.

#### Water District Board

Chairman Archie B. Taylor, Jr. called the Water District Board to order, and the December 2018 monthly operations report was presented to the board for information. Chairman Taylor closed the Water District Board.

## Committee Reports and Recommendations

*Technology Committee - Broadband.* County Manager Jordan McMillen reported that the committee (Brummitt[C], Taylor & Feimster [absent]) met with Joe Freddoso (Mighty River, LLC) and Diane Cox (Kerr Tar Regional Council of Governments) on Monday, January 28, 2019 to discuss an overview and next steps related to broadband in the county and the region. The committee briefly discussed the broadband survey results for Vance County, and thoroughly discussed the two finalist proposals: NCBP (North Carolina Broadband Partnership) and Open Broadband. NCBP's provider is Declaration Networks from Maryland and is more established, whereas Open Broadband is backed by Greenlight from Wilson which is in the start-up stage with fewer customers. The committee noted that NCBP's upfront investment from the county is substantially higher, the monthly rates for citizens are higher, and the service is not appreciably better than Open Broadband's. Both companies have high customer satisfaction ratings. The committee is interested in having staff further the conversation with both firms, but expressed strong interest in Open Broadband, noting they have active projects in Duplin, Gaston, Lee, Orange, Mecklenburg, Rowan, Rutherford, Stanly, and Wayne Counties. The committee also expressed an interest in buying down rates for subscribers to assist in addressing affordability which was brought out in the county's local residential survey. The county manager, along with the consultant and the COG, will have further conversations with both companies regarding potential buy-down incentives and next steps. County Manager Jordan McMillen informed the committee that Open Broadband has applied for a GREAT (Growing Rural Economies with Access to Technology) grant with the state Broadband Office. The GREAT grant is only available to internet service providers to be utilized within tier 1 counties. If successful, this would assist with rolling out service if the county selects Open Broadband.

## Finance Director's Report

*Resolution to Donate Property.* Finance Director David C. Beck advised that Vance-Granville Community College (VGCC) has expressed a critical need for vehicles for its campus police department. Currently, the department is sharing one functional vehicle between three police officers. VGCC made a request for a surplus law enforcement vehicle from both Vance and Granville counties. The Granville County Board of Commissioners has approved donating a surplus vehicle to VGCC. General statute 160A-280 authorizes the county to donate property to another governmental unit. It is recommended that Vance County follow the course of action

taken by Granville County and donate a surplus vehicle to VGCC as well. A public notice of the intent to donate property was posted on January 28, 2019.

After brief discussion, motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the following resolution to donate one surplus law enforcement vehicle from the Vance County Sheriff's Office to Vance-Granville Community College for no consideration.

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**Resolution Approving Donation of Property to  
Another Unit of Government in North Carolina  
Pursuant to G.S. 160A-280**

WHEREAS, the County of Vance owns law enforcement vehicles which were previously used by the Vance County Sheriff's Office but are now deemed surplus; and

WHEREAS, North Carolina General Statute § 160A-280 authorizes a governmental unit upon such terms and conditions as it deems wise, with or without consideration, donate any personal property the governing board deems to be surplus, obsolete, or unused to any other governmental unit within the United States; and,

WHEREAS, the Vance-Granville Community College has expressed a present need for a law enforcement vehicle and the Vance-Granville Community College has requested Vance County to transfer a surplus law enforcement vehicle for use by the Vance-Granville Community College Campus Police Department and Vance County has determined it wise and in the best interest of the County to donate the same for the described use.

NOW THEREFORE, the Vance County Board of Commissioners resolves as follows:

1. The County of Vance hereby donates to Vance-Granville Community College for use in their campus police department one surplus law enforcement vehicle.
2. The property herein described shall be conveyed for no consideration.
3. The Vance County Finance Officer is authorized to execute any documents necessary to donate the property in the manner authorized by this Resolution.

**Adopted this the 4<sup>th</sup> day of February, 2019.**

**Archie B. Taylor, Jr.** (signed)  
**Archie B. Taylor, Jr., Chair**  
**Vance County Board of Commissioners**

**Attest:**

**Kelly H. Grissom** (signed)  
**Kelly H. Grissom**  
**Clerk to the Board**

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County Attorney's Report

*REO Properties.* County Attorney Jonathan S. Care noted that during its January meeting, the board of commissioners approved the public sale process for Parcel 0077 03003 – Lots 270, 271, 272 Eastside Drive; Parcel 0452 03024 – Lot 6 Roberts Avenue; and Parcel 0411A03003 –

Lot 133 West Hills Drive. The properties were advertised through the upset bid process and none were received. The board is now free to sell the properties or reject the offers. This should be done by resolution.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to adopt the following resolutions accepting the bids for Parcel 0077 03003 – Lots 270, 271, 272 Eastside Drive; Parcel 0452 03024 – Lot 6 Roberts Avenue; and Parcel 0411A03003 – Lot 133 West Hills Drive.

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**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

**WHEREAS**, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**Lots 270, 271, 272 Eastside Drive, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0077 03003.**

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **January 12, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

**WHEREAS**, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by ***Omega T. Perry*** in the amount of **\$1,500.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**This the 4<sup>th</sup> day of February, 2019.**

**Archie B. Taylor, Jr. (signed)**  
**Chairman**  
**Vance County Board of Commissioners**

**Attest:**

**Kelly H. Grissom (signed)**  
**Kelly H. Grissom**  
**Clerk to the Board**

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**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

**WHEREAS**, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**Lot 6 Roberts Avenue, Henderson, North Carolina 27537, Vance County Tax Department Parcel Number 0452 03024.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **January 12, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Jamie Henderson** in the amount of **\$1,200.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**This the 4<sup>th</sup> day of February, 2019.**

**Archie B. Taylor, Jr.** (signed)  
Chairman  
Vance County Board of Commissioners

Attest:

**Kelly H. Grissom** (signed)  
Kelly H. Grissom  
Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**Lot 133 West Hills Drive, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0411A03003.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **January 12, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Marvin Gilmore** in the amount of **\$750.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**This the 4<sup>th</sup> day of February, 2019.**

**Archie B. Taylor, Jr.** (signed)  
Chairman  
Vance County Board of Commissioners

Attest:

**Kelly H. Grissom** (signed)  
Kelly H. Grissom  
Clerk to the Board

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*REO Property – New Offer.* Attorney Jonathan S. Care stated that an offer had been received from Kimberly Johnson for Parcel 0541D01033 – 175 Freedom Lane, Henderson, NC in the amount of \$5,512. He stated that the Board needs to vote on whether or not to proceed with the sale by advertising for upset bids and recommended approval of the resolution to begin the upset bid process for the property.

Motion was made by Commissioner Gordon Wilder to approve the following resolution authorizing the upset bid process for Parcel 0541D01033 – 175 Freedom Lane, Henderson, NC. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

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**RESOLUTION AUTHORIZING UPSET BID PROCESS  
FOR SALE OF REAL PROPERTY  
175 Freedom Lane (Lot 37), Henderson, NC 27537**

**WHEREAS**, Vance County owns certain real property with an address of **175 Freedom Lane (Lot 37), Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Numbers **0541D01033**; and,

**WHEREAS**, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and,

**WHEREAS**, the County has received an offer to purchase the real property described herein above in the amount of **\$5,512.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by ***Kimberly Johnson***; and,

**WHEREAS**, ***Kimberly Johnson*** has paid the required deposit in the amount of **\$900.00** with her initial offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.

2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check

or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

**This the 4<sup>th</sup> day of February, 2019.**

**Archie B. Taylor, Jr. (signed)**  
**Chairman**  
**Vance County Board of Commissioners**

**Attest:**

**Kelly H. Grissom (signed)**  
**Kelly H. Grissom**  
**Clerk to the Board**

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County Manager's Report

*Resolution – Black History Month.* February has been observed nationally as Black History Month. Vance County has traditionally encouraged its citizens to participate in related events that create a greater awareness and appreciation of contributions made by African-Americans. Recommendation: Adopt the resolution in support of the designation of February as Black History Month in Vance County.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to adopt the following resolution in support of the designation of February as Black History Month in Vance County.

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**RESOLUTION**  
**by the**  
**Vance County Board of Commissioners**  
**in designation of**  
***February 2019 as Black History Month in Vance County***

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Leo Kelly, Jr., vote unanimous, to approve the following resolution authorizing the lease of real property identified as tax parcels 0453 05005 and 0453 05005A pursuant to NCGS 160A-272.

[illegible]

**By the Vance County Board of Commissioners  
Authorizing the Lease of Real Property Pursuant to NCGS § 160A-272**

**WHEREAS**, pursuant to NCGS § 153A-176 and 160A-272, any property owned by Vance County may be leased or rented for such terms and upon such conditions as the Commission may determine, but not for longer than 10 years and only if the Commissioners determine that the property will not be needed by the county for the term of the lease; and,

**WHEREAS**, Vance County has purchased real estate referred to as the Elmore tract, Vance County tax parcel ID's 0453 05005 and 0453 05005A and more particularly shown on Plat Book "Y", Page 985, Tracts 1 and 2, 84.63 acres Vance County Registry for economic development purposes; and,

**WHEREAS**, Vance County desires for the open land to be maintained until such time as the remainder, or portions thereof, are needed by Vance County; and,

**WHEREAS**, T. Wayne Grissom and Matthew Grissom previously leased the open land from prior owners, and currently use the property for growing agricultural crops, and are willing to maintain the property and permit the County to remove any or all of the land at any point in time with 30 days notice to them, regardless of any crops planted, growing or harvested for a term from the date of approval through November 30, 2021.

**WHEREAS**, Vance County, pursuant to NCGS §160A-272 (a1) has published a notice describing the property to be leased or rented, stating the annual rental or lease payments, and announcing the Commissioners' intent to authorize the lease or rental at its next regular meeting at least 30 days prior to said meeting.

**OW, THEREFORE, BE IT RESOLVED**, by the Board of Commissioners for the County of [redacted] as follows:

1. The real property known as the Elmore Tract, and more specifically identified as Tracts 1 and 2, Parcels 0453 05005 and 0453 05005A and more particularly shown on Plat Book "C", Page 985, Tracts 1 and 2, 84.63 acres and recorded in Deed Book 1349, Page 659 of the Vance County Registry will be leased to T. Wayne Grissom and Matthew Grissom according to the terms and conditions set forth in the attached Agricultural Lease Agreement.
2. The Chairman of the Vance County Board of Commissioners is hereby authorized to execute any and all documents related to the above authorized lease.

**his resolution shall be effective upon its adoption.**

**ADOPTED this the 4<sup>th</sup> day of February, 2019.**

Archie B. Taylor, Jr. (signed)  
Archie B. Taylor, Jr., Chairman  
Harris County Board of Commissioners

**ttest:**

Kelly H. Grissom (signed)  
Kelly H. Grissom  
Clerk to the Board

**Abstract**

*Resolution - Juvenile Crime Prevention Council (JCPC) Allocation Expansion.* Mr. McMillen advised that the County’s JCPC has requested a resolution in support of additional state funding. The request is a result of the recent addition of juveniles (aged 16 and 17) to JCPCs jurisdiction following approval of the NC Juvenile Justice Reinvestment Act (Raise the Age Legislation). All 100 counties have JCPC programs that oversee the award of state allocated dollars to reduce local juvenile crime via services to juveniles and families. In Vance County, the FY18-19 JCPC budget includes \$160,352 in state funds and \$109,229 in county dollars which fund programs such as Community Service, Project Youth Outreach and Teen Court through the Henderson-Vance Recreation Department in addition to the Boys and Girls Club and Youth Villages programs.

Motion was made by Commissioner Carolyn Faines, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the following resolution in support of Juvenile Crime Prevention Council Allocation Expansion:

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**RESOLUTION**  
**by the**  
**Vance County Board of Commissioners**  
**in support of**  
***Juvenile Crime Prevention Council Allocation Expansion***

**WHEREAS,** Juvenile Crime Prevention Council (JCPC) funding is a partnership between the State of North Carolina and the County to ensure a local continuum of services for court involved and at-risk juveniles; and

**WHEREAS,** the Juvenile Crime Prevention Council, under the authority of NCGS§143B-851, and within the scope of its powers and duties, “Each County Council shall annually review the needs of juveniles in the county who are at risk of delinquency or who have been adjudicated undisciplined or delinquent and the resources available to address those needs. In particular, each County Council shall assess the needs of juveniles in the county who are at risk or who have been associated with gangs or gang activity, and the local resources that are established to address those needs,” and

**WHEREAS,** the Juvenile Justice Reinvestment Act passed in 2017, also referenced as North Carolina’s Raise the Age legislation, expands the age of juvenile jurisdiction, increasing it to include juveniles ages 16 and 17 years of age effective December 1, 2019; and

**WHEREAS,** Raise the Age legislation will increase the need for immediate and age-appropriate sanctions and diversion services for juvenile offenders and those at-risk of delinquency; and

**WHEREAS,** JCPC funding has seen no increase in more than nine years; and

**WHEREAS,** the effort to immediately and effectively address juvenile offending behavior is an evidence-based investment in North Carolina’s future; and

**WHEREAS,** effective intervention and programming reduces detention and youth development commitments as a cost savings to the state and county.

**This, the 4<sup>th</sup> day of February, 2019.**

[illegible]

Mr. McMillen explained that the state Environmental Management Commission within DEQ (Department of Environmental Quality) recently began the approvals necessary to amend the state stormwater regulations requiring Vance County to meet stormwater requirements. If adopted, the rules would require the county to develop and implement a stormwater permitting program requiring developers to implement stormwater controls to meet nutrient loading. It is anticipated that this requirement would create additional cost and barriers to development within this basin which encompasses the southern half of Vance County and would require the assistance of an outside firm and possibly an additional planning staff member to fully implement. Mr. McMillen stated that we are anticipating the state opening up a 60 day public comment period during the months of February and March which could lead to eventual adoption of rules by September 2019.

Recommendation: Approve resolution in opposition to adding Tar-Pamlico stormwater requirements to Vance County.

**Figure 1**

**WHEREAS**, the Environmental Management Commission is proposing to add Tar-Pamlico Stormwater Requirements for Vance County, Granville County, and Wilson County, to restore nutrient-impaired waters that remains unmet in the Tar-Pamlico Estuary; and,

**WHEREAS**, if adopted, this would require local governments to develop and implement stormwater permitting programs requiring developers to implement stormwater controls to meet nutrient loading rate targets on new development projects, and submit annual reports to the state DEQ (Division of Environmental Quality) documenting their progress; and,

*Goals for FY 2019-20.* Mr. McMillen stated that the following goals were prioritized for FY 2019-20 during the retreat on January 31, 2019. It would be appropriate for the board to formally approve the goals.

1. To move forward expeditiously with acquiring, designing, and renovating former Eaton-Johnson school to include exploring alternative financing opportunities to house the Department of Social Services, Senior Center and other departments as space allows.
2. To provide the necessary funding and support to improve fire response countywide with the idea of reducing response times and assisting departments with lowering ISO ratings to create savings for our citizens.
3. To create additional jobs and investment through supporting existing businesses, finalizing Phase III of the Henderson-Vance Industrial Park and marketing available buildings.
4. To provide support and complete the broadband planning process by selecting an internet service provider company in order to provide affordable broadband to the unserved and underserved areas of the County while also providing an alternative service for our citizens.
5. Explore ways to clean up and address trash throughout the county.
6. To continue addressing public health and wellbeing with an emphasis on substance use disorder and mental health.

Chairman Taylor stated that he was disappointed that the board did not set a strategic plan as a goal.

Motion was made by Commissioner Carolyn Faines to approve the goals as developed by the Board of Commissioners for FY 2019-20. This motion was seconded by Commissioner Dan Brummitt and unanimously approved.

*Fire Reorganization.* Mr. McMillen noted that the board held a work session on January 23<sup>rd</sup> to further discuss the fire service reorganization. A written summary of the work session was provided to the board.

Motion was made by Commissioner Gordon Wilder to begin Phase 1 of the fire services restructure on July 1, 2019 and assign up to two part-time personnel to all volunteer fire departments; and to continue Golden Belt in its current structure, as evaluation continues of fire structure, response times, and available personnel. This motion was seconded by Commissioner Leo Kelly, Jr.

Commissioner Carolyn Faines asked if funding was available for this. Commissioner Wilder stated that it would need to be addressed during budget work sessions. Commissioner Dan Brummitt asked for clarification of “up to two” part-time personnel. He also asked if this would include any 24/7 personnel in Hicksboro or Bearpond. Commissioner Wilder stated that “up to two” refers to Drewry and Epsom because Epsom had stated in the past that they only wanted one part-time position. The motion does not include 24/7 personnel in Hicksboro or Bearpond. This would be part of the evaluation process. Commissioner Brummitt expressed his concern about funding this motion. He stated that the current fire commission proposal is revenue neutral, and he cannot support more funding going into this matter. Commissioner Wilder stated that this would be a part of budget deliberations and you cannot put a price on life and property. He stated that his motion is to get the ball rolling on this matter.

After further discussion, vote on the motion to assign up to two part-time personnel to all volunteer fire departments effective July 1, 2019; and to continue Golden Belt in its current structure, as evaluation continues of fire structure, response times, and available personnel was ayes – four (4); noes – three (3), with the dissenting votes being cast by Commissioners Dan Brummitt, Carolyn Faines, and Yolanda Feimster.

Consent Agenda

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, to approve the following consent agenda items as presented: Budget Amendments #14 - #15, Budget Transfers #7 - #9, December 2018 Tax Refunds and Releases, Departmental Monthly Reports, and the minutes of the January 7, 2019 regular meeting.

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Budget Amendment #14  
FY 2018-2019  
Transfers to Other Funds

| Revenue Amendment Request         | Account Number | Revenue Increase (Decrease) |
|-----------------------------------|----------------|-----------------------------|
| Transfer from General Fund        | 30-397-439710  | 923.76                      |
| Transfer from General Fund        | 45-397-439710  | 1,847.52                    |
|                                   |                |                             |
| Total Revenue Increase (Decrease) |                | \$ 2,771.28                 |

  

| Expenditure Amendment Request | Account Number | Expense Increase (Decrease) |
|-------------------------------|----------------|-----------------------------|
| Transfer to Solid Waste       | 10-696-500157  | 923.76                      |
| Tourism                       | 10-696-500195  | 1,847.52                    |
|                               |                |                             |
| Total                         |                | \$ 2,771.28                 |

Purpose: Correction amendment needed to account for bonus awarded to employees in October for those employees paid from funds other than the general fund. Goes along with Transfer #3.

Authorization: Vance County Board of Commissioners  
February 4, 2019

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Budget Amendment #15  
FY 2018-2019  
Social Services

| Revenue Amendment Request         | Account Number | Revenue Increase (Decrease) |
|-----------------------------------|----------------|-----------------------------|
| DSS Administrative                | 10-348-43480   | 133,978                     |
|                                   |                |                             |
| Total Revenue Increase (Decrease) |                | \$ 133,978                  |





| TAXPAYER NAME                  | TAX YR | REAL      | PERSONAL  | SOLID WASTE FEE | REASON           |
|--------------------------------|--------|-----------|-----------|-----------------|------------------|
| HARRIS GREGORY W               | 2018   | 0         | 0         | 112             | remove solid was |
| HARRIS GREGORY W               | 2018   | 0         | 0         | 112             | remove solid was |
| HENDERSON COLLEGIATE           | 2018   | 0         | 762.71    | 0               | correct/grant ex |
| HENDERSON COLLEGIATE           | 2018   | 0         | 21.63     | 0               | correct/grant ex |
| HENDERSON COLLEGIATE           | 2018   | 0         | 210.62    | 0               | correct/grant ex |
| HENDERSON COLLEGIATE           | 2018   | 0         | 48.06     | 0               | correct/grant ex |
| HENDERSON COLLEGIATE INC       | 2018   | 343.63    | 0         | 0               | correct/grant ex |
| HENDERSON COLLEGIATE INC       | 2018   | 127062.72 | 0         | 0               | correct/grant ex |
| HODGE DENNIS M                 | 2018   | 2334.87   | 0         | 224             | correct value    |
| JONES DORETHA R                | 2018   | 517.46    | 0         | 0               | correct/grant ex |
| MAINSTREET MARKETPLACE OF HEND | 2018   | 0         | 308.38    | 0               | correct value    |
| MOSS LEROY A                   | 2018   | 0         | 16.12     | 0               | pers prop billed |
| MURRAY DOUGLAS S               | 2018   | 104.47    | 0         | 0               | correct/grant ex |
| PUBLIC SERVICE COMPANY OF NC   | 2018   | 1416.47   | 0         | 0               | state assessed   |
| SAUNDERS WILLIAM A HEIRS       | 2018   | 435.34    | 0         | 0               | correct/grant ex |
| SMITH DIXIE W HEIRS            | 2018   | 288.20    | 0         | 0               | correct situs    |
| WADE IRVIN A.                  | 2018   | 131.83    | 0         | 0               | correct value    |
| WESTWOOD PENTECOSTAL HOLINESS  | 2018   | 1013.56   | 0         | 0               | correct/grant ex |
| WRIGHT BERL O JR               | 2018   | 400.50    | 0         | 0               | correct/grant ex |
|                                |        |           |           |                 |                  |
| TOTAL                          |        | 135260.29 | 1410.45   |                 |                  |
|                                |        |           |           |                 |                  |
| TOTAL REFUNDS AND RELEASES     |        |           | 136670.74 |                 |                  |

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MONTHLY REPORTS: 911 Emergency Operations, Administrative Ambulance Charge-Offs, Cooperative Extension, EMS, Health Department, Human Resources, Information Technology, Planning & Development, Tax Collections, and Veterans Service.

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Miscellaneous

*Appointments.* The following appointments were presented to the board for consideration:

Henderson Planning Board – three year term  
Reappoint Phil Walters

Henderson Zoning Board of Adjustments – three year term  
Reappoint Edward Spain

Vance County Planning Board – three year term  
Reappoint Logan Darensburg and Blake Haley

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, to approve the appointments as presented.

*March Meeting Date.* Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, that the Board adopt the following resolution to change the meeting date in March due to the NACo Legislative Conference in Washington, DC:

**WHEREAS**, the Vance County Board of Commissioners normally holds its regular meetings on the first Monday of each month at 6:00 p.m.; and

**WHEREAS**, the Vance County Board of Commissioners desires to change its regular meeting scheduled for Monday, March 4, 2019 at 6:00 p.m. to Monday, March 11, 2019 at 6:00 p.m.

**BE IT FURTHER RESOLVED** that a copy of this resolution is to be posted on the Administration Building bulletin board, and the news media within Vance County is to be made aware of this change.

Archie B. Taylor, Jr. (signed)  
Archie B. Taylor, Jr., Chairman

Archie B. Taylor, Jr. (signed)  
Archie B. Taylor, Jr., Chairman